

DISSOLUTION OF MUSLIM MARRIAGES ACT, 1939 ACT 8 OF 1939

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Legislative Department, Ministry of Law and Justice, Government of India

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An Act to consolidate and clarify the provisions of Muslim law relating to suits for dissolution of marriage by women married under Muslim law.

Section 1: Short title and extent - Extends to the whole of India.

Section 2: Grounds for decree for dissolution of marriage:

- i Husband whereabouts unknown for 4 years decree effective after 6 months;
- ii Husband neglected or failed to provide maintenance for 2 years;
- iii Husband sentenced to imprisonment for 7 years or upwards;
- iv Husband failed to perform marital obligations for 3 years without cause;
- v Husband impotent at marriage and continues to be so 1 year medical proviso;
- vi Husband insane for 2 years or suffering from leprosy or virulent venereal disease;
- vii Option of puberty: Repudiated marriage before 18 if married before 15 unconsummated;
- viii Cruelty: Physical assault, infamous life, forcing immoral life, disposing property, obstructing religious profession, or inequitable treatment among multiple wives;
- ix Any other ground recognized as valid for dissolution of marriage under Muslim law.

Section 3: Notice to be served on heirs of husband when whereabouts unknown.

Section 4: Effect of conversion to another faith - Renunciation of Islam by wife does not dissolve marriage automatically, but preserves right to decree under Section 2.

Section 5: Right to dower Mahr not affected - Wife retains full entitlement to Mahr.

Section 6: Repeal of Section 5 of Act 26 of 1937.

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